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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, September 21, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Austin v. City of Westminster, 2024-01422151	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED Defendant City of Westminster (“City”) moves for summary judgment against the Complaint of plaintiff William Harrison Austin (“Plaintiff”). No timely opposition was received. Plaintiff alleges he was injured when his motorcycle lost traction on a roadway maintained by the City with an excessive amount of loose gravel. The City argues there is no evidence that it created the condition at issue and, therefore, Plaintiff must show that the City had notice of the gravel for a long enough time to have protected against it. The City contends there is no evidence of any notice because the City had an adequate inspection system in place pursuant to which streets are routinely inspected for defects and maintenance is performed in response to service requests from the public and/or city crews and, despite this inspection system, the alleged defect was not discovered before Plaintiff’s incident. The City further asserts that it had not received any prior claims or complaints about the street where Plaintiff’s accident occurred prior to Plaintiff’s incident. “When a person is injured on public property, the public entity's duty of care and the circumstances under which it is breached turn on (1) whether “the property was in a dangerous condition”; (2) whether “the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred”; and (3) whether the public entity was negligent.” (Martinez v. City of Beverly Hills (2021) 71 Cal.App.5th 508, 517-518.) “Public property is in a ‘dangerous condition’ when it ‘creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.’” (Id. at p. 518.) “Even if there is a dangerous condition on public property, a public entity is liable for injuries caused by it only if the entity was negligent.” (Ibid.) “A public entity may be

		negligent—and hence liable for injuries caused by a dangerous condition on its property—in one of two ways.” (Ibid.) If the public entity created the dangerous condition or failed to take measures to protect against it upon actual or constructive notice thereof, the public entity may be negligent. (Id. at pp. 518-519.) “A public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2(b).) On the issue of due care, it is relevant whether the public entity maintained and operated an inspection system “that was reasonably adequate . . . to inform the public entity whether the property was safe for [] use” and whether the public entity “maintained and operated such an inspection system with due care and did not discover the condition.” (71 Cal.App.5th at p. 519; Gov. Code, § 835.2(c).) The undisputed facts and evidence confirm that the City’s roadways are routinely inspected for defects and the City did not receive any prior claims or complaints about the street prior to Plaintiff’s accident. There is no evidence of any actual notice of the condition prior to the accident. The fact that the City routinely inspects its streets for defects and, despite its routine inspections, had no notice of the loose gravel before Plaintiff’s accident also demonstrates that the condition had not existed for such a period of time sufficient to charge the City with constructive notice. Further, the loose gravel or debris that caused Plaintiff’s fall was “off the typical area of travel for a vehicle.” (Ex. B at 17:6-10 [Deposition of Officer Jonathan Mullin].) Therefore, any dangerousness of the condition of the loose gravel was not obvious in nature. The City has met its burden to show it is entitled to summary judgment as a matter of law and Plaintiff has not opposed the Motion in any attempt to raise a triable issue of material fact. In light of the above, the Motion for Summary Judgment is GRANTED.
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		Moving party to prepare the appropriate order and judgment. Moving party to give notice.
102	Blood v. Wang, 2026-01554903	MOTION TO EXPUNGE LIS PENDENS – DENIED Defendant Huan Wang (“Defendant”) moves for an order expunging the Notice of Pendency of Action (Lis Pendens) recorded against the real property commonly known as 127 Restore, Irvine, California 92618, Assessor’s Parcel No. 930-062-11 (the “Subject Property”), which was recorded in the Official Records of Orange County, California, on March 25, 2026, as Document No. 2026000086003. Defendant also requests attorney fees pursuant to Code of Civil Procedure section 405.38. Plaintiff Michael Blood (“Plaintiff”) opposes the motion. The Court finds that Plaintiff has carried his burden in establishing the probable validity of his real property claim(s) by a preponderance of the evidence and therefore the Motion is DENIED. A lis pendens will be expunged if: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32.) Thus, the party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) To overcome the motion to expunge, Plaintiff must establish “it is more likely than not it will obtain a judgment” on its real property claim. (Code Civ. Proc., § 405.) Plaintiff’s showing must be by a preponderance of the evidence. (Code Civ. Proc., § 405.32.) Here, Plaintiff has established the probable validity of his real property claim by a preponderance of the evidence. At the very least, Plaintiff has established the

	probable validity that he is entitled to some relief pursuant to an unjust enrichment theory of restitution. The evidence before the Court establishes that Plaintiff “paid for the entire down payment of \$506,400.00,” “took out a mortgage on the remaining sale amount for One Million One Hundred Eighty-One Thousand Six Hundred Dollars (\$1,181,600.00),” and invested not less than \$24,000 in Subject Property on various renovations, thereby improving the equity value of the property.” (ROA 70, Decl. of Michael Blood, ¶¶ 6-8.) Defendant does not proffer any evidence that refutes this position or evidence that she made a contribution or benefit to Plaintiff or suffered a loss that would make Plaintiff’s financial contribution equitable and lack of title to the property equitable. Plaintiff proffers no agreement between the parties wherein Plaintiff received any consideration for his financial contributions and debt obligations. In fact, the evidence proffered by Defendant only establishes additional grounds that make Plaintiff’s unjust enrichment claim stronger – Defendant is now receiving rental income from the property at issue. Defendant submitted two Grant Deeds and one Quitclaim Deed in support of her motion and requests judicial notice of these documents. Defendant’s Requests for Judicial Notice are GRANTED. The Court notes, however, that while “Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] do not take judicial notice of the truth of the factual matters asserted in those documents.” (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.) Given this authority, along with the evidence submitted by Plaintiff, the Court finds that the Grant Deeds and Quitclaim Deed cannot be taken at face value and that the totality of the evidence suggests probable validity by a preponderance of the evidence that Defendant has been unjustly enriched with the title to the property at issue and that the title to the property was acquired by Defendant’s undue influence or wrongful act (such as threats “to expose the details of my divorce and rehabilitation stay to my place of employment and to the family law court”,
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		false accusations of sexual assault, and threats regarding the custody of Plaintiff's daughter). Given the above, the Motion to Expunge Lis Pendens is DENIED. Defendant's alternative request for an undertaking is DENIED as this time. (Code Civ. Proc., §§ 405.32 and 405.33.) Plaintiff to give notice.
103	Castellanos v. PHH Mortgage, 2026-01563843	DEMURRER – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendants Onity Mortgage Corporation (formerly known as PHH Mortgage Corporation) and Deutsche Bank National Trust Company demur to the complaint filed by Plaintiff Richard Castellanos. Defendants' Request for Judicial Notice is GRANTED, pursuant to Evidence Code section 452, subdivision (h). (Poseidon Development, Inc. v. Woodland Lane States, LLC (2007) 152 Cal.App.4th 1106, 1117.) The First and Second Causes of Action for violations of Civil Code sections 2923.5 and 2924.9 are barred by the statute of limitations. Plaintiff alleges a violation of both of the above provisions, as "plaintiff received no mail or messages from Defendant," either prior to the Notice of Default being recorded or within 5-days thereof. (¶19 and ¶24-¶25 of Complaint.) Both claims are subject to a 3-year statute of limitation, as they are "action[s] upon a liability created by statute, other than a penalty or forfeiture." (Code Civ. Proc., § 338(a).) Defendants assert that both claims are barred, as the relevant Notice of Default was recorded on October 31, 2022 (See ¶13 of Complaint and Exhibit D thereto; See also Exhibit 4 of RJN), more than 3 years before this action was initiated on April 20, 2026.

		A demurrer based on the statute of limitations will not lie where the action may be, but is not necessarily, barred. (See <i>Boy Scouts of America Nat. Foundation v. Superior Court</i> (2012) 206 Cal.App.4th 428, 438.) Plaintiff asserts the above ambiguity requires the demurrer be overruled. “In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint.” (Id. at 438-439). The allegations in the Complaint conflict as to the correct date. (Compare ¶13 [Notice of Default was recorded on October 31, 2022] with ¶¶19, ¶23 [Notice of Default was recorded on October 31, 2025].) Exhibit D to the Complaint establishes the correct date is October 31, 2022. “While the ‘allegations [of a complaint] must be accepted as true for purposes of demurrer,’ the ‘facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence.’” (<i>Moran v. Prime Healthcare Management, Inc.</i> (2016) 3 Cal.App.5th 1131, 1145-1146.) On the Fourth Cause of Action for Wrongful Foreclosure, a required element is that “the trustor or mortgagor the amount of the secured indebtedness or was excused from tendering.” (<i>Lona v. Citibank, N.A.</i> (2011) 202 Cal.App.4th 89, 104.) While it is true that “[a] tender may not be required where it would be inequitable to do so” (<i>Onofrio v. Rice</i> (1997) 55 Cal.App.4th 413, 424), Plaintiff’s only offered explanation, as to why this exception applies herein, is Defendants’ alleged failure to comply with the foreclosure-alternative notice requirements, stated within Civil Code sections 2923.5 and 2924.9. (See Opposition: 5:9-17; See also ¶61 of Complaint.) Given the identified violations of Civil Code section 2923.5 and 2924.9 are time barred, the Court finds the above allegation insufficient to state a claim. Plaintiff has not alleged facts which demonstrate that requiring tender in this case would be inequitable.
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		Lastly, Plaintiff brings a claim for unfair competition, pursuant to Business & Professions Code section 17200, which prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....” (Bus. & Prof. Code, § 17200.) “Where a UCL Claim is derivative of another claim that fails as a matter of law, the UCL claim must similarly fail.” (Nein v. HostPro, Inc. (2009) 174 Cal.App.4th 833, 841.) Defendants demur to the Third Cause of Action, on the basis it is derivative of all remaining claims. (Demurrer: 7:2-4.) In response, Plaintiff concedes the derivative nature of this claim, but nonetheless asserts that “the first, second, and fourth causes of action are not shown to be barred as a matter of law on the face of this Complaint....” (Opposition: 6:3-7.) As the Court has sustained the demurrer to all remaining claims, the demurrer is likewise sustained, as to this derivative claim. While Plaintiff has not specified how he will amend to state a claim and, in particular, has not identified a legal basis for avoiding the statute of limitations, leave to amend is GRANTED, as this is his first attempt at pleading. (See Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688; See also Amy’s Kitchen, Inc. v. Fireman’s Fund Ins. Co. (2022) 83 Cal.App.5th 1062, 1073.)
104	Craig v. SageKitchen, LLC, 2025-01526209	MOTION TO COMPEL ARBITRATION – GRANTED Plaintiff Jeremy Craig sued his former employer, Defendant Sagekitchen, for wrongful termination and disability discrimination, among other causes of action related to his employment. Defendant has moved to compel arbitration based on an arbitration agreement signed by Plaintiff. Plaintiff agrees he signed the arbitration agreement, and that the causes of action alleged in his complaint would be covered by the agreement if it is enforceable. Plaintiff also agrees he refused to agree to submit his claims to arbitration.

		Plaintiff contends the arbitration agreement is both procedurally and substantively unconscionable. Plaintiff bears the burden of proof on the issue of unconscionability. (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 244.) Plaintiff fails to establish procedural unconscionability, Plaintiff's declaration in opposition to the motion to compel arbitration does not establish he was required to sign the agreement in order to obtain employment. (Compare Craig Decl., ¶¶3-10 with Herscovici Decl., ¶¶5-6.) Further, the Court does not find that the terms of the arbitration agreement are so one-sided as to shock the conscience, and therefore does not find substantive unconscionability. Although the agreement provides that the arbitration "will be conducted in accordance with the rules applicable to employment disputes of [JAMS]," it also allows the parties to "mutually agree to other procedures," and the JAMS rules themselves do not prohibit the discovery Plaintiff requests. (Having made the argument before this Court that the arbitrator has the authority to expand discovery and provide for nonparty discovery, the Court anticipates that Defendant will not take a contrary position before the arbitrator.) The Court rejects Plaintiff's argument that the EFAA makes the arbitration agreement invalid because it might apply to a claim of sexual harassment, when there are no causes of action of sexual harassment or discrimination in this case. The motion to compel arbitration is GRANTED. The matter is STAYED. The Court sets an ADR review hearing on September 20, 2027, at 1:30 p.m. in Department N14. Counsel for Defendant is ORDERED to provide notice to the Court within 15 days of a final arbitration award.
105	Elias v. Jensen, 2020-01139897	MOTION FOR RECONSIDERATION – CONTINUED On July 28, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security Pursuant to Vexatious Litigant Statute. Pursuant to CCP §391.6, the

		filing of this motion automatically stays the entirety of the action until a specified time after the motion is heard. Accordingly, Plaintiff David Elias’s Motion for Reconsideration is CONTINUED to November 2, 2026 at 9:00 a.m. in Department N14. NO FURTHER BRIEFING ON THIS MOTION WILL BE PERMITTED. For the same reason, the Court also continues the hearing on Plaintiff’s Motion for Statement of Decision (ROA 1147) from September 28, 2026 to November 2, 2026 at 9:00 a.m. in Department N14. Clerk to give notice.
106	Flanagan v. Mercedes-Benz USA, LLC, 2026-01551285	MOTION TO COMPEL ARBITRATION – GRANTED The Motion to Compel Arbitration brought by Defendant Mercedes-Benz USA, LLC, against Plaintiff Nicholas Flanagan, is GRANTED. The Federal Arbitration Act governs here as the arbitration agreement expressly provides that it “shall be governed by the Federal Arbitration Act (9 USC 1, et seq.).” (Sandhu Decl., Ex. B at p. 4.) Accordingly, the FAA applies. The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (Concepcion, supra, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (First Options of

	Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (Green Tree Fin. Corp. v. Randolph (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (Brennan v. Opus Bank (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; Dean Witter Reynolds, Inc. v. Byrd (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (Green Tree Fin. Corp., supra, 531 U.S. at p. 91.) <u>Existence of Agreement to Arbitrate</u> A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165–166.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541; see also Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060 [holding same].) For this step, “it is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is
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	required for the moving party to meet its burden of persuasion. Here, Mercedes meets its initial prima facie burden of establishing the existence of a written arbitration provision, in the Lease Agreement. It is undisputed that Plaintiff signed the Lease Agreement that contained the foregoing arbitration clause. The relevant arbitration provision states as follows: “Any claim or dispute whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successor, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a ‘Third Party Beneficiary’), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third Party Beneficiary, be resolved by a neutral binding arbitration and not by a court action.” (Sandhu Decl., Ex. B [emphasis added].) Initially, while Plaintiff asserts that statutory warranty claims are not encompassed in the above agreement, the above provision is broad and applies to the statutory claims at issue herein, generally. (See <i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 186, as modified on denial of reh'g (June 23, 2016), as modified (June 28, 2016) [holding that examples of “broad” clauses include “any claim arising from or related to this agreement” and are sufficiently broad to include torts and claims where the allegations “touch matters” covered by the contract].) Additionally, the Court finds that Defendant MBUSA is entitled to enforce the agreement. <u>Mercedes’ Standing to Compel Arbitration</u> As argued by Plaintiff, equitable estoppel does not apply to permit MBUSA to compel arbitration, as “[t]he warranties upon which plaintiffs’ claims rest are
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	independent of the sales contracts, not intimately intertwined with them.” (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1135.) However, “[a] third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit.” (Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324, 1336 [internal quotations omitted].) In determining whether the third party beneficiary doctrine applies, the court considers: “(1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.” (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 830.) “All three elements must be satisfied to permit the third-party action to go forward.” (Ibid.) In disputing application of the third-party beneficiary doctrine, Plaintiff relies heavily on Ford Motor Warranty Cases (2025) 17 Cal.5th 1122; however, this authority did not consider application of third-party beneficiary status. Additionally, in contrast to the contractual language at issue in Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, the arbitration provision states, both, that MBUSA is a third-party beneficiary, and that third-party beneficiaries may enforce the arbitration provision. (Sandhu Decl., Ex. B.) By expressly designating MBUSA as a third-party beneficiary entitled to enforce the arbitration provision, the Lease Agreement clearly benefits and communicates an intent to benefit the moving Defendant. Similarly, applying the above herein, permitting MBUSA to enforce the arbitration provisions is consistent with the objectives of the contract and the reasonable expectations of the parties.
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		Based on the above, all the Goonewardene elements are met. (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 830.) As explained by the Court in Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324: “If the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC – directly or by class as the vehicle’s manufacturer – as a person entitled to compel arbitration.” (Id. at p. 1339.) This is exactly what the instant Lease Agreement has done and, in doing so, they have communicated an intent to permit enforcement by moving Defendant as a third-party beneficiary. Based on the above, the Court finds that Defendant is entitled to enforce the arbitration provision within the Lease Agreement, as a third-party beneficiary. For these reasons, the court GRANTS Defendant MBUSA’s motion to compel arbitration and hereby STAYS the action pending resolution of the parties’ binding arbitration. Moving Defendant to give notice.
107	Hernandez v. Anaheim Palace Inc., 2024-01419077	MOTIONS FOR JUDGMENT ON THE PLEADINGS – GRANTED IN PART Defendants Edgar Maya and Eric Chang filed motions for judgment on the pleadings. The Court previously rejected Plaintiffs’ initial argument that the motions are barred because Defendants previously demurred to the Plaintiffs’ complaint. (See ROA 213) The Ninth cause of action for violation of Labor Code section 1158.5 cannot be stated against employees of the employer who has violated the statute. Therefore, the motion for judgment on the pleadings must be granted as to both Maya and Chang on that cause of action.

		The complaint does not contain any allegations that defendant Maya committed any acts supporting the 10th cause of action for hostile work environment. Sufficient facts are alleged to support a cause of action against defendant Maya on the 11th cause of action. Sufficient facts are alleged to support a cause of action against Chang on the 14th cause of action for IIED. The same is not true of defendant Maya. Sufficient facts are alleged to support a cause of action against Chang and Maya for violation of the UCL on the 15th cause of action. The motions for judgment on the pleadings are GRANTED as to defendant Chang on the 9th cause of action, and as to defendant Maya on the 9th, 10th, and 14th causes of action. Plaintiff's counsel shall advise the Court whether leave to amend is sought. If leave to amend is not sought, the trial date will remain. The Court notes that many of the causes of action alleged against all defendants would more properly be alleged against only the corporate defendant/employer. The Court encourages counsel for the parties to meet and confer as to the cause of action that will be pursued against each individual defendant at trial.
108	Legacy Capital Investment Group Inc. v. Legacy Investment Group I, LLC, 2025-01470274	DEMURRER – WITHDRAWN
109	Lopez v. Flores, 2024-01435693	TRANSFERRED TO INFORMAL DISCOVERY PROGRAM
110	Maya v. Target, 2023-01370674	CONTINUED

111	McGrew v. Heimbuch, 2025-01535253	MOTION FOR LEAVE TO FILE DEMURRER – CONTINUED TO 09/28/2026
112	Nguyen v. Ky, 2024-01380521	DEMURRER – SUSTAINED IN PART WITHOUT LEAVE TO AMEND AND OVERRULED IN PART Defendant Haiky Nguyen (“Defendant”) demurs to the First Amended Complaint (FAC) of plaintiff Tuan Nguyen (“Plaintiff”). Demurrer to Entire FAC Defendant argues that all of the claims, even if valid, were discharged by a voluntary Chapter 7 petition filed by Defendant on October 28, 2022. “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” (Code Civ. Proc., § 430.41(b).) Here, Defendant could have raised the argument regarding the bankruptcy discharge in the Demurrer to the initial Complaint but failed to do so. Therefore, the Demurrer on this ground is OVERRULED. Fraud and Deceit Defendant argues that the fraud and deceit cause of action fails because the FAC still does not plead how or by what means the alleged promise was communicated or that Defendant made any promise without an intent to perform. In sustaining the prior Demurrer, the Court held the fraud and deceit cause of action was insufficient because there was no allegation that Defendant did not intend to perform the promise at the time she made it. The FAC alleges that Defendant knew her representation that she intended to repay the loan was false but does not allege any facts showing how, when, where, to whom, and by what means the representation was tendered. Thus, the cause of action remains insufficiently pled. (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Thus, the

		Demurrer to the fraud cause of action is SUSTAINED without leave to amend. Conversion Defendant argues the conversion claim also independently fails because the FAC alleges that Plaintiff voluntarily transferred the funds pursuant to a loan agreement and the mere failure to repay a loan does not give rise to a conversion claim. In sustaining the prior Demurrer, the Court noted that the simple failure to pay money owed does not constitute conversion and there were no allegations that Plaintiff entrusted the subject funds to Defendant for a specific purpose or that Defendant interfered with Plaintiff's possessory interest in the funds. The FAC continues to allege that the funds were loaned to Defendant by Plaintiff for a specific time period. Because the simple failure to pay money owed does not constitute a conversion, this cause of action remains insufficiently pled. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Thus, the Demurrer to the conversion cause of action is SUSTAINED without leave to amend. Money Had and Received Defendant argues the money had and received claim fails because an express contract governs the parties' relationship and, therefore, a quasi-contractual claim based on the same subject matter does not lie. As with the bankruptcy discharge issue, Defendant did not previously demur to this cause of action. Thus, pursuant to Code of Civil Procedure section 430.41(b), the Demurrer to this cause of action is OVERRULED. Defendant to file an answer to the FAC within 15 days. Clerk to give notice. MOTION TO BE RELIEVED AS COUNSEL – GRANTED Meghan C. Murphey of Murphey & Murphey ("Moving Counsel") moves to be relieved as counsel of record for defendant Haiky Nguyen. The motion is unopposed and Moving Counsel has stated a basis for permissive withdrawal under the Rules of
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		Professional Conduct, Rule 1.16. All other requirements are satisfied. Thus, the Motion to Be Relieved as Counsel is GRANTED. The Court will interlineate the proposed order filed with the Court (ROA 84) to delete the trial date of 07/27/2026 and add the status conference on 11/16/2026. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Counsel to give notice.
113	Robicheaux v. Rowshan, 2022-01261647	MOTION FOR SANCTIONS This motion was filed several months ago. Before the Court decides what (if any) sanction is appropriate, it will need to figure out whether and when the discovery complained about in this motion was produced.
114	Vickers v City of Newport Beach, 2026-01565611	HEARING VACATED DUE TO DESIGNATION AS COMPLEX MATTER
115	Davis v. Bachmayer, 2022-01291164	DEFENDANT’S MOTION TO COMPEL DEPOSITION OF PLAINTIFF – DENIED Defendant John T. Bachmayer’s (“Defendant”) motion to compel the deposition of Plaintiff Jaimie Davis (“Plaintiff”) is DENIED. Plaintiff timely served valid objections to the deposition notice on February 27, 2026. (Bachmayer Decl. ¶5, Exh. C.) The primary objection was as to the location specified in the notice, on the grounds that it violated CCP §2025.250(a). That section provides: (a) Unless the court orders otherwise under Section 2025.260, the deposition of a natural person, whether or not a party to the action, shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent's residence, or within the county where the action is

	pending and within 150 miles of the deponent's residence. Plaintiff resides in Las Vegas, Nevada. (Davis Decl. ¶2.) The deposition was noticed to take place in Tustin, California. (Bachmayer Decl. ¶ 3, Exh. A.) The distance from Plaintiff's residence to the deposition site far exceeds 150 miles. Plaintiff's objection to the deposition notice was therefore a valid objection, as Defendant had not obtained a court order authorizing the deposition to be taken outside the 150 mile limit. While Defendant contends that Plaintiff stipulated to the location, the email in support of this purported stipulation is ambiguous at best. Plaintiff only indicated "I have one obligation on the 5th that I think can be changed." (Bachmayer Decl. ¶ 3, Exh. B.) This is not in any way tantamount to a stipulation to appear on March 5th for deposition at the location selected by Defendant. Further, the motion is not timely. The objections were served on February 27, 2026. (Bachmayer Decl. ¶5, Exh. C.) However, the motion was not filed until May 22, 2026. While CCP § 2025.450 does not specify a time limit for filing a motion to compel deposition when the party deponent fails to appear without serving a valid objection, CCP § 2025.480 specifies that a motion to compel deposition must be made "no later than 60 days after the completion of the record of the deposition." (CCP § 2025.480(a)). This provision has been construed to require motions to compel depositions under various provisions of the Discovery Act to be filed within 60 days after service of objections. (See <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 136.) Here, the motion was filed nearly a month after the 60-day deadline had elapsed. Plaintiff's request for monetary sanctions is DENIED. Plaintiff is in pro per and has obtained a fee waiver and has not otherwise demonstrated that Plaintiff incurred any expenses in opposing the motion to compel. (See <i>Kravitz v. Superior Court</i> (2001) 91 Cal.App.4th 1015, 1021 (Kravitz) [discovery monetary sanctions may not
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	include award of attorney fees to self-represented litigant but may include legitimate identified costs such as technology assisted legal research, photocopying, and transportation to court].) PLAINTIFF'S MOTION TO COMPEL FURTHER ANSWERS TO DEPOSITION QUESTIONS AND PRODUCTION OF DOCUMENTS BY DEFENDANT – DENIED Plaintiff moves to compel further deposition answers and production of documents from Defendant. The motion is DENIED. As to Plaintiff's ten requests for production of documents, the separate statement does not comply with CRC 3.1345(c)(2) in that the text of each response, answer or objection has not been provided. Instead, Plaintiff provides a summary of Defendant's response. For example, for the first request for production, the entry under the heading "Response/Objection Given," states: Blanket objections, including privilege and work product; no production. Deposition testimony confirmed he did not produce any documents in response to the notice and instead "interpos[ed] an objection to the notice." It is impossible for the Court to ascertain from this exactly what objections were made. Further, despite referencing them in her declaration, Plaintiff did not provide the Court with a copy of Defendant's responses. Thus, there is no way for the Court to determine what Defendant's responses were, even if the Court were inclined to search through the record (which, per CRC 3.1345(c), it is under no obligation to do). As to the deposition questions, CCP §2025.480 requires the moving party to lodge with the court a certified copy of any parts of the stenographic transcript of the deposition that is relevant to the motion. Plaintiff has not provided the Court with a copy of the deposition transcript. Further, it is unclear whether the text of the "responses" in the separate statement includes the full
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	response or whether Plaintiff has only provided the Court with selected excerpts. For example, excerpt No. 22 indicates it came from pages 58:4-16 of the transcript (a total of 12 lines), but the text of the question provided is only one sentence, and the text of the response is even shorter, and contains ellipses. It thus appears that the entirety of the response has not been provided, and this appears to be the case with most, if not all, of the excerpts. Further, CCP § 2025.480(b) requires a reasonable and good faith attempt to informally resolve each issue presented in the motion. While Plaintiff includes a conclusory statement in her declaration that she met and conferred with Defendant both in person and on the phone prior to filing the motion, Defendant persuasively disputes that characterization. (Davis Decl. ¶ 8; Bachmayer Decl. ¶¶ 5-7.) Plaintiff did not file a reply and therefore has not disputed Defendant's account of the purported meet and confer efforts. Sanctions in the amount of \$19.50 are issued against Plaintiff Jaimie Davis. (CCP §2025.480(j).) The amount represents amounts paid for electronic filing contractors expended by Defendant in opposing this motion. Sanctions are due and payable to Defendant within 30 days of this order. Clerk to give notice. The parties should be prepared to advise the Court regarding the status of their necessary pretrial meet and confer pursuant to Local Rule 317.
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